

CONSUMER DATA PRIVACY AND PROTECTION ACT
MODEL STATE STATUTE - TITLE 45, CHAPTER 12

§ 45-12-1. Short Title and Legislative Findings

(a) Short Title. This Chapter shall be known and may be cited as the "Consumer Data Privacy and Protection Act" (CDPPA).

(b) Legislative Findings. The Legislature finds and declares that:

- (1) The right to privacy is a fundamental human right and a social good that enables individual autonomy, dignity, and freedom;
- (2) Consumers increasingly rely on digital services and connected devices that collect, process, and share vast amounts of personal data;
- (3) Many consumers are unaware of the extent to which their personal data is collected, processed, and shared, often without meaningful consent;
- (4) Inadequate data protection practices threaten consumer privacy, safety, and economic well-being;
- (5) It is the policy of this State to establish baseline data privacy protections for consumers and to create a framework for responsible data processing.

§ 45-12-2. Definitions

As used in this Chapter:

- (1) "Biometric data" means data generated by automatic measurements of an individual's biological characteristics, including fingerprints, facial scans, or voice recordings;
- (2) "Consumer" means a natural person who is a resident of this State acting only in an individual or household context.
- (3) "Controller" means a natural or legal person who, alone or jointly with others, determines the purposes and means of the processing of personal data;
- (4) "Data processing" or "processing" means any operation or set of operations performed, whether or not by automated means, on personal data;
- (5) "Personal data" means any information that is linked or reasonably linkable to an identified or identifiable natural person. Personal data includes, but is not limited to, information that identifies, relates to, describes, or is capable of identifying or relating to a specific individual;
- (6) "Processor" means a natural or legal person who processes personal data on behalf of a controller.
- (7) "Pseudonymous data" means personal data that cannot be attributed to a specific natural person without the use of additional information;
- (8) "Sale of personal data" means the exchange of personal data for monetary or other valuable consideration by the controller to a third party;
- (9) "Sensitive data" means a category of personal data that includes:
 - (a) Personal data revealing racial or ethnic origin, religious beliefs, mental or physical health diagnosis, sexual orientation, or citizenship;
 - (b) The processing of genetic data or biometric data for the purpose of uniquely identifying a natural person;
 - (c) The personal data of a known child; or
 - (d) Precise geolocation data.
- (10) "Targeted advertising" means displaying advertisements to a consumer where the advertisement is selected based on personal data.

§ 45-12-3. Scope and Applicability

- (a) This Chapter applies to persons that conduct business in this State or produce products or services that are targeted to residents of this State:
 - (1) Control or process personal data of not less than one hundred thousand (100,000) consumers; or
 - (2) Control or process personal data of not less than twenty-five thousand (25,000) consumers and derive over fifty percent (50%) of gross revenue from the sale of products or services.
- (b) This Chapter does not apply to:
 - (1) State agencies or political subdivisions;
 - (2) Financial institutions or data subject to the Gramm-Leach-Bliley Act, 15 U.S.C. § 6801 et seq.;
 - (3) Covered entities or business associates governed by the Health Insurance Portability and Accountability Act of 1996;
 - (4) Nonprofit organizations;
 - (5) Higher education institutions.

§ 45-12-4. Consumer Rights

- (a) Right of Access. A consumer has the right to confirm whether a controller is processing the consumer's personal data and to access such data.
- (b) Right of Correction. A consumer has the right to correct inaccuracies in the consumer's personal data, taking into account the nature of the data.

- (c) Right of Deletion. A consumer has the right to delete personal data provided by or obtained about the consumer.
- (d) Right of Portability. A consumer has the right to obtain a copy of the consumer's personal data that the consumer previously provided.
- (e) Right to Opt-Out. A consumer has the right to opt out of the processing of personal data for purposes of:
 - (1) Targeted advertising;
 - (2) The sale of personal data; or
 - (3) Profiling in furtherance of solely automated decisions that produce legal or similarly significant effects concerning the consumer.
- (f) Right to Non-Discrimination. A controller shall not discriminate against a consumer for exercising any of the rights provided in this section.

§ 45-12-5. Controller Obligations

- (a) Transparency. A controller shall provide consumers with a reasonably accessible, clear, and meaningful privacy notice that includes:
 - (1) The categories of personal data processed by the controller;
 - (2) The purpose for processing personal data;
 - (3) How and where consumers may exercise their rights;
 - (4) The categories of personal data that the controller shares with third parties;
 - (5) The categories of third parties with whom the controller shares personal data.
- (b) Purpose Limitation. A controller shall limit the collection of personal data to what is adequate, relevant, and reasonably necessary in relation to the purposes for which the data is collected.
- (c) Data Minimization. A controller shall not process personal data for purposes that are not reasonably necessary to or compatible with the purposes for which the data was collected.
- (d) Data Security. A controller shall establish, implement, and maintain reasonable administrative, technical, and physical data security practices to protect personal data.
- (e) Sensitive Data. A controller shall not process sensitive data concerning a consumer without obtaining the consumer's consent, or, in the case of a child, the consent of a parent or guardian.
- (f) Non-Discrimination. A controller shall not process personal data in violation of federal and state laws that prohibit unlawful discrimination.

§ 45-12-6. Data Protection Assessments

- (a) A controller shall conduct and document a data protection assessment for each of the following processing activities involving personal data:
 - (1) The processing of personal data for targeted advertising;
 - (2) The sale of personal data;
 - (3) The processing of personal data for purposes of profiling;
 - (4) The processing of sensitive data; and
 - (5) Any processing activities involving personal data that present a heightened risk of harm to consumers.
- (b) A data protection assessment shall weigh the benefits of the processing against the potential risks to the rights of consumers.

§ 45-12-7. Enforcement and Civil Penalties

- (a) The Attorney General shall have exclusive authority to enforce this Chapter.
- (b) Before initiating an action for violation of this Chapter, the Attorney General shall provide a controller or processor with written notice of the alleged violation and an opportunity to cure the violation.
- (c) A controller or processor that fails to cure a violation may be liable for:
 - (1) Civil penalties of not more than seven thousand five hundred dollars (\$7,500) per intentional violation; and
 - (2) Civil penalties of not more than one thousand dollars (\$1,000) per unintentional violation.
- (d) The Attorney General may seek injunctive relief to restrain violations of this Chapter.
- (e) This Chapter does not provide a private right of action.

§ 45-12-8. Preemption

This Chapter does not preempt any state law that imposes greater restrictions on the processing of personal data than those provided in this Chapter.

§ 45-12-9. Effective Date

This Chapter takes effect July 1, 2025.